SimpleSales Privacy Policy

How SimpleSales handles personal data, security, retention and commercial analytics

Application SimpleSales

Service provider Nerva Technologies, Kenya

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Version 1.2

Contact security@nerva.co.ke

1. Overview and scope

1.1

This Privacy Policy explains how Nerva Technologies handles personal data in connection with SimpleSales, including the mobile app, related websites, APIs, support, backups, analytics and integrations.

1.2 Privacy principles

We aim to process data lawfully, fairly and transparently; collect only what is reasonably necessary; use it for stated purposes; secure it appropriately; retain it only as necessary or legally required; and support applicable data-subject rights.

1.3 Merchant responsibility

Merchants may enter personal data about customers, staff and suppliers. The merchant remains responsible for having lawful authority and appropriate notices for its own business processing.

2. Controller and processor roles

2.1 NERVA as controller

NERVA may determine purposes and means for account administration, security, support, billing administration, compliance, service communications and certain product analytics.

2.2 NERVA as processor/service provider

For personal data a merchant stores solely for its business operations, NERVA may process it on the merchant's instructions and may therefore act as a processor/service provider depending on the activity and law.

2.3 Merchant as controller

The merchant may be the controller for customer, supplier and staff data entered into its Shop and is responsible for lawful collection, notices, access and response to relevant data-subject requests.

2.4 Role varies by purpose

A single field can be processed under different roles for different purposes. Role is determined by the actual purpose and decision-making for that processing.

3. Data we may collect

3.1 Account and identity

Name or business contact name, where supplied.

Email, phone number or other account identifier used for registration/recovery.

Authentication and security metadata.

Shop names, business profile and configuration.

User roles and permissions.

3.2 Business data

Products, categories, prices, quantities and inventory.

Sales, returns, payment references and timestamps.

Purchases, suppliers and expenses.

Customer names, phone numbers, credit/debt records or notes when entered.

Staff/cashier identifiers and activity where enabled.

Receipts, invoices, attachments and exports where supported.

3.3 Technical data

Depending on the production build and enabled services, we may process device model, OS version, app version, crash diagnostics, IP address, session/security identifiers and other technical metadata. The published policy must match the actual SDKs used.

3.4 Camera/images

Barcode scanning, product-image or receipt features may request camera/photo access when initiated by the user. Continuous camera monitoring is not implied by such permission.

3.5 Location

SimpleSales should not be described as collecting precise location unless the production build actually does so. Any future location feature requires updated disclosures.

3.6 Payment data

Third-party providers may handle payment credentials. SimpleSales may receive transaction IDs, amounts, statuses, masked information and confirmation data needed for records. We do not intend to collect payment credentials the app does not need.

3.7 Support

Support interactions may include screenshots, logs, device details, transaction references and issue descriptions voluntarily provided by the user.

4. Sources of data

4.1 Direct

Users provide most information when registering, configuring Shops, recording transactions, using features or contacting support.

4.2 Connected services

Enabled authentication, payment, messaging, hosting, analytics, app-store and other integrations may provide relevant information.

4.3 Administrators

Shop administrators may enter information about staff, customers or suppliers. The administrator is responsible for authority to provide it.

5. Purposes of processing

5.1 Core service

Create and authenticate accounts.

Create and manage Shops and profiles.

Record sales, inventory, expenses and operations.

Provide dashboards, reports and exports.

Synchronize/back up data where enabled.

Provide support and service communications.

5.2 Security

Technical and account information may be used to detect unauthorized access, abuse, fraud, malware, credential compromise and attacks.

5.3 Reliability and improvement

Aggregated or minimized technical/usage data may be used to diagnose failures, understand feature performance and improve the Service.

5.4 Billing

Where paid services exist, account, subscription, invoice and payment-status data may be processed to administer the relationship.

5.5 Legal compliance

Data may be processed and retained for legal obligations, lawful requests, tax/accounting requirements, fraud prevention, disputes and legal claims.

5.6 Commercial intelligence

Where a merchant separately participates, permitted Business Data may be used for aggregate market intelligence, benchmarks, reports, dashboards, APIs and research.

5.7 Communications

Transactional, security and service communications may be sent. Marketing messages, where used, will provide an appropriate opt-out mechanism.

5.8 Clear description of commercial purposes

In addition to providing and securing SimpleSales, NERVA may use information for product development, service performance analysis, business analytics, market research, industry benchmarking and the preparation of commercial insights and data products. These products may include aggregated reports, trend analyses, dashboards, APIs and research made available to business customers under licence or contract. We aim to use information that has been minimized and aggregated for these purposes, and to exclude direct personal identifiers where appropriate. The specific data categories, purposes and legal basis must be reflected in the live product disclosures.

6. Lawful basis and consent

6.1 Lawful processing

NERVA processes personal data only where a lawful basis exists under applicable law. Depending on the activity this may include contract/service performance, legal obligation, consent, legitimate interests where permitted, or another recognized lawful ground.

6.2 Consent

Where consent is the appropriate basis, it should be specific, informed and affirmative. Optional commercial intelligence is separated from core operational processing.

6.3 Withdrawal

Consent can be withdrawn through available mechanisms or by contacting NERVA. Withdrawal does not invalidate prior lawful processing or require deletion where another lawful basis applies.

6.4 No forced contribution

Choosing not to participate in optional commercial intelligence should not, by itself, disable core POS functionality.

6.5 Separate permission where required

Where applicable law requires express consent or another specific authorization for commercial use of personal data, NERVA will obtain that permission or establish the qualifying legal authorization and provide the required notice before the relevant processing begins. Optional commercial-intelligence participation will be presented separately from acceptance of the Terms of Service and from processing needed to operate the POS service. Where participation is optional, declining it will not by itself prevent use of core POS features. Users may withdraw consent through the available mechanism or by contacting NERVA; withdrawal does not invalidate prior lawful processing and does not require deletion of records that must lawfully be retained.

7. Commercial intelligence and Contribution Ledger

7.1 Business model boundary

NERVA may support a model where the core POS remains accessible while revenue comes from subscriptions,

services and carefully governed aggregate data products.

7.2 Permitted contribution

Only data covered by the applicable contribution mechanism may be used for commercial intelligence. Fields

should be minimized and unnecessary personal identifiers excluded.

7.3 Limits on commercial data use

Individual customer profiles are excluded from commercial outputs.

Raw customer phone-number lists are excluded from commercial outputs.

Raw identifiable transaction records are excluded from commercial outputs.

Identifiable individual-shop performance unless expressly authorized.

Passwords, payment credentials or authentication secrets.

7.4 Aggregation

NERVA may aggregate participating businesses and use suppression thresholds. Thresholds are safeguards,

not proof of anonymity.

7.5 Pseudonymization

Hashes, tokens and pseudonymous IDs may still be personal data if linkable. NERVA will not automatically

describe linkable pseudonymous data as anonymous.

7.6 Contribution Ledger

A restricted sanitized Contribution Ledger may record contribution lineage, normalization and permitted use. It

is not a public raw-data repository.

7.7 Buyers

Commercial customers receive only licensed aggregate reports, datasets, benchmarks, dashboards or APIs.

Contracts may restrict re-identification and onward use.

7.8 Future uses

Materially different uses will require updated disclosure and any consent or authorization required by law.

7.9 Data products and recipients

Commercial customers may receive aggregated reports, benchmarks, statistical insights, dashboards, APIs or research outputs under written terms. Those customers are not entitled, solely by purchasing a data product, to raw transaction dumps, customer contact lists, passwords, payment credentials or identifiable individual customer records. NERVA will apply appropriate access controls and contractual restrictions intended to prevent re-identification, unauthorized onward disclosure and use outside the agreed purpose. The effectiveness of aggregation depends on the data and context; NERVA will not describe information as anonymous merely because names have been removed, identifiers have been hashed, or records have been combined.

7.10 Data rights and business information

You retain the rights you hold in your Business Data. You authorize NERVA to process it as reasonably necessary to provide, secure, maintain and support the Service and for any additional purpose clearly described in this Policy and supported by a lawful basis. This clause does not transfer ownership of your underlying business records to NERVA and does not override rights held by individuals whose personal data appears in those records.

8. Sharing and disclosure

8.1 Processors

Data may be shared with service providers such as cloud hosting, databases, authentication, communications, analytics, support, security, backups and payment integrations.

8.2 Payment providers

Relevant information may be transmitted to a provider to complete or verify a transaction. Provider terms and privacy notices also apply.

8.3 Merchant staff

Authorized users within a Shop may see information according to the merchant's permissions.

8.4 Legal disclosure

We may disclose information where required or permitted by law, court order, regulator, fraud-prevention duty or to protect rights and safety.

8.5 Corporate transactions

Information may transfer as part of a merger, acquisition, restructuring, financing or asset transaction subject to law.

8.6 Data products

Licensed aggregate data products may be provided to commercial customers as contracted. Raw individual-level data is not automatically included.

8.7 Controlled commercial data use

NERVA does not make identifiable personal data available as an unrestricted commercial product.

8.8 Commercial and service-provider disclosure

We may disclose relevant information to contracted providers that host, secure, support, analyze or operate the Service, and to commercial customers only as part of the disclosed data products and subject to applicable law and contractual safeguards. We may also disclose information where required or permitted by law, to respond to lawful requests, protect rights and safety, investigate suspected abuse, or complete a lawful corporate transaction. The actual provider list and material recipient categories should be maintained internally and disclosed as required by law.

9. International transfers and hosting

9.1 Hosting

Processors may operate infrastructure outside Kenya. Locations can change as providers change their infrastructure.

9.2 Safeguards

Transfers outside Kenya will use safeguards required by applicable law, which may include adequate protection, contractual/organizational safeguards, consent where appropriate or another permitted mechanism.

9.3 Internal register

NERVA should maintain an internal processor and data-location register and update it when material changes occur.

9.4 International transfers

Where information is hosted or accessed outside Kenya, NERVA will assess and use the safeguards and legal mechanisms required for the particular transfer under applicable Kenyan law. The policy must be updated if hosting locations, recipients or transfer arrangements materially change. A general statement that a provider may operate internationally does not replace the need to assess the applicable transfer requirements.

10. Security

10.1 Measures

Depending on risk, measures may include encryption in transit, authentication, access controls, role restrictions, audit logs, backups, monitoring, rate limiting, vulnerability management and secure development practices.

10.2 Device security

Local data requires device locks, OS updates, controlled physical access and appropriate backups.

10.3 No absolute security

No connected system can guarantee perfect security against unknown vulnerabilities, stolen credentials, compromised devices or social engineering.

10.4 Incidents

NERVA will investigate suspected incidents and make notifications to affected parties or authorities when required by law.

10.5 Security is a continuing responsibility

NERVA will implement and periodically review technical and organizational safeguards appropriate to the nature and risks of the information processed. Depending on the risk, these may include least-privilege access, strong authentication, encryption in transit and where appropriate at rest, secure credential management, logging and monitoring, vulnerability remediation, tested backups, staff training, processor oversight and incident-response exercises. No system can be guaranteed perfectly secure. If an incident occurs, NERVA will assess it, take reasonable containment and remediation steps, preserve relevant evidence and notify affected persons or authorities within the periods and in the manner required by law.

11. Retention

11.1 Principle

Personal data should not be retained in identifiable form longer than reasonably necessary for its purpose unless required or permitted by law.

11.2 Account data

Account information may be retained while active and for a reasonable period afterward for security, disputes, compliance and recovery.

11.3 Business records

Tax, accounting, transaction and legal records may require retention under applicable law.

11.4 Backups

Deleted data can persist temporarily in protected backups until normal rotation.

11.5 Anonymous data

Irreversibly anonymized data may be retained as permitted by law. Pseudonymized data is not automatically anonymous.

11.6 Retention schedule

NERVA should maintain an internal schedule for each data category, purpose, retention period, legal basis and deletion method.

11.7 Retention schedule

NERVA will maintain a documented retention schedule identifying data categories, purposes, lawful bases, retention periods or criteria, legal holds and deletion methods. Information will not be kept in identifiable form longer than reasonably necessary for the stated purpose unless retention is required or permitted by law. Backup deletion may occur through normal backup rotation. Retention exceptions should be limited to the relevant records and reviewed periodically.

12. Account deletion

12.1 Accessible deletion

For accounts, NERVA intends to provide a clear deletion process in the app and/or through a public web mechanism. The production implementation should make it easy to locate.

12.2 What is deleted

Data not legally required to be retained should be deleted or irreversibly anonymized, subject to lawful exceptions, backups, disputes and security records.

12.3 Third parties

Deleting a SimpleSales account does not automatically delete records held independently by banks, payment providers, app stores or other providers.

12.4 Merchant data

Merchant-controlled records may require retention or may contain information about other individuals; requests are handled according to applicable law and controller responsibilities.

12.5 Verification

NERVA may verify identity or account authority before deletion to prevent malicious deletion.

12.6 Deletion and exceptions

NERVA will provide an accessible account-deletion process where required and will delete or irreversibly anonymize personal data that no longer needs to be retained, subject to legal obligations, lawful retention requirements, security records, disputes, backup cycles and the rights of other individuals. Where data is controlled by a merchant, NERVA may need to refer the request to that merchant or act on the merchant's lawful instructions. Deletion from SimpleSales does not automatically erase records held independently by payment providers, app stores, banks or other third parties.

13. Data-subject rights

13.1 Rights

Subject to applicable law, individuals may have rights to information, access, correction, objection, deletion/erasure where applicable, restriction, portability where provided and other statutory rights.

13.2 Merchant-controlled data

Requests about data controlled by a merchant may need to be directed to that merchant.

13.3 NERVA requests

Requests concerning NERVA's own processing should be sent to security@nerva.co.ke. Include enough information to understand and authenticate the request without unnecessary sensitive data.

13.4 Response

Requests will be handled under applicable law; reasonable identity verification and lawful exceptions may apply.

13.5 Complaints

Nothing removes the right to complain to the Office of the Data Protection Commissioner or another competent authority.

13.6 Data-subject requests

Individuals may exercise rights available under applicable law, which may include being informed, access, correction, objection, erasure, restriction and portability where applicable. Requests should be directed to security@nerva.co.ke. NERVA may verify identity or authority and apply lawful exceptions. Requests concerning records for which a merchant is the controller may need to be directed to that merchant. Nothing in this Policy limits the right to complain to the Office of the Data Protection Commissioner or another competent authority.

14. Children

14.1 Intended audience

SimpleSales is a business-management tool and is not designed as a child-directed service.

14.2 Minor data

Merchants must not deliberately enter children's data unless lawful and appropriate for their business purpose.

14.3 Accidental collection

If inappropriate child data is identified, NERVA may restrict or delete it subject to law.

15. Cookies, analytics and SDKs

15.1 App storage

The app may use local storage, device identifiers or diagnostics required for authentication, offline operation, settings, security and reliability.

15.2 Websites

Related websites may use cookies for authentication, security, preferences or analytics where enabled.

15.3 Analytics

Analytics services should minimize unnecessary personal data and be disclosed in the live policy and Google Play Data Safety form.

15.4 SDK inventory

NERVA should inventory every production SDK/service capable of receiving user or device data. Published disclosures must match actual behavior.

16. Third-party services

16.1 Independent providers

Payment processors, cloud providers, app stores, messaging services, analytics vendors and other integrations have their own terms and policies.

16.2 Boundary

NERVA controls its own processing but cannot control an independent provider's practices outside NERVA's systems.

16.3 Provider changes

Integrations may be modified or removed for security, compatibility, legal or commercial reasons.

17. Backups, exports and shared devices

17.1 Backups

Backups can contain the same sensitive business and personal data as the Shop and should be protected.

17.2 Exports

Once CSV/PDF/other exports leave NERVA systems, the recipient controls handling. Protect them accordingly.

17.3 Shared devices

Use screen locks, appropriate roles and secure logout on shared devices.

17.4 Lost device

If a device containing local data is lost, secure the device and account credentials and contact NERVA if compromise is suspected.

18. Accuracy and automated decisions

18.1 Accuracy

NERVA relies on users and connected systems for accurate information. Validation does not independently verify every record.

18.2 Analytics

Automated reports can be wrong when underlying data or configuration is wrong.

18.3 Credit/lending

If business data is ever used for lending or risk decisions, that activity should be separately disclosed and governed by applicable law and the relevant provider. SimpleSales does not guarantee credit approval.

18.4 High-impact decisions

NERVA should not represent that SimpleSales performs high-impact automated decisions about individuals unless such functionality has been implemented, assessed and disclosed.

18.5 Merchant responsibility for third-party personal data

If you enter personal data about customers, staff, suppliers or other people, you must have the lawful authority to do so, provide any required notices, collect only information reasonably necessary for your business purpose, keep it accurate where required, restrict staff access, protect exports and devices, and respond to requests for which you are responsible. Do not upload sensitive or unrelated personal information unless the Service supports the use and you have a lawful basis.

19. Governance and access controls

19.1 Least privilege

Access to personal and business data should be limited to operational need.

19.2 Administrative access

Authorized personnel/processors may access limited information for support, security, maintenance or legal compliance; access should be controlled and logged.

19.3 Contribution Ledger

The restricted Contribution Ledger should not be exposed through the merchant app, ordinary public API or commercial customer API.

19.4 Data boundary

Platform-wide commercial intelligence must not leak into merchant-facing views unless intentionally disclosed and authorized.

20. Breach and incident handling

20.1 Detection

Security monitoring may detect authentication anomalies, service errors and suspicious activity.

20.2 Investigation

NERVA may preserve logs, restrict access, rotate credentials and disable integrations while investigating.

20.3 Notification

Where law requires notification to the ODPC or affected persons, NERVA will follow the applicable process and deadlines.

20.4 User reporting

Report suspected compromise, phishing or unauthorized access to security@nerva.co.ke.

21. Changes to this policy

21.1 Updates

We may update this policy when processing, law, features, processors or disclosures change.

21.2 Notice

Material changes will be communicated through an appropriate channel where required.

21.3 Version history

NERVA should retain prior versions for governance and audit purposes.

22. Contact, regulatory rights and publication checklist

22.1 Contact

Privacy requests: security@nerva.co.ke. For official contact, email security@nerva.co.ke.

22.2 ODPC

Individuals may contact the Office of the Data Protection Commissioner through its published channels. ODPC materials describe rights including information, access, rectification, erasure, portability, objection and restriction.

22.3 Before publication

1 Confirm exact legal entity and address.

2 Confirm privacy/security contacts.

3 Publish this policy as a public HTTPS web page and link it in-app and on Google Play; do not use the PDF as the sole Play privacy-policy URL.

4 Inventory every production SDK, processor, payment provider and analytics service.

5 Map each data field to purpose, lawful basis, retention and recipient.

6 Verify actual permissions: camera, photos/files, notifications, Bluetooth, contacts, location, microphone and any other sensitive permission.

7 Implement and test account deletion.

8 Complete Google Play Data Safety disclosures consistently with production behavior.

9 Implement separate commercial-intelligence participation controls.

10 Confirm ODPC registration obligations and complete required registration.

11 Use processor/data-processing contracts where required.

12 Create incident-response and breach-notification procedures.

13 Have Kenyan privacy counsel review the final policy and data flows before release.

22.4 Do not publish inaccurate promises

If the production app collects, sends, retains or uses data differently from this policy, update the policy and required platform disclosures before relying on the new behavior.

23. Research references

23.1 Kenyan law

Drafting was informed by the Kenya Data Protection Act, 2019; ODPC public guidance and registration materials; Kenyan consumer-protection law; and cybersecurity law.

23.2 Platform requirements

Google Play requires a comprehensive, accessible privacy policy, accurate Data Safety disclosures, secure handling and an account-deletion mechanism for apps offering accounts. Google states that the Play privacy-policy URL should be a public web page rather than a PDF.

23.3 Product research

Public POS repositories reviewed during drafting commonly document local-first storage, inventory, transactions, roles, payments, exports, backups and security limitations. These are product-risk prompts, not legal authority.

NERVA
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